

Francisco (N.D. Cal. 2008) 576 F.Supp.2d 1079, 1103, quoted with omissions in *Caldera v. Department of Corrections and Rehabilitation* (2018) 25 Cal.App.5th 31, 43-44.)

Because Plaintiff has failed to allege facts to state a claim for discrimination or harassment, Defendant's Demurrer is **sustained**, with leave to amend.

12. 9:00 AM CASE NUMBER: C25-01696
CASE NAME: PAUL RAPIER VS. CATHERINE FOSTER
HEARING ON DEMURRER TO: PLAINTIFF'S COMPLAINT
FILED BY: FOSTER, CATHERINE
TENTATIVE RULING:

Defendant's demurrer to the second cause of action for hostile work environment harassment is **overruled** and its demurrer to the eighth cause of action for intentional infliction of emotional distress is **sustained with leave to amend**. Defendant shall prepare the order and serve notice of entry of order. Plaintiff shall have 30 days from service of notice of entry of order in which to file and serve an amended complaint.

Background

Plaintiff Paul Rapier alleges that he is a 50-year-old disabled African American male who was employed by Defendant Contra Costa School for the Performing Arts (CCSPA) for approximately seven months, beginning on or around October 10, 2023, as a Lead Custodian. According to the complaint, Rapier performed his job in an exemplary manner at all relevant times and received no negative performance reviews or disciplinary actions. (Complaint, ¶¶ 11-12.)

Rapier alleges that throughout his tenure, he was one of, if not the only, African American employee in the workplace and that he was treated less favorably than his non-African American counterparts. Specifically, he alleges that he was deprived of the same rights, benefits, and privileges as non-African American employees and that he was shunned, ostracized, and excluded by his non-African American coworkers. (Complaint, ¶ 13(a).)

Rapier further alleges that his minor son, who was a student at the same school where Rapier worked, was subjected to similar treatment. According to the complaint, Rapier's son, who was one of few African American students at the school, was frequently singled out, targeted, and falsely accused of engaging in misconduct. In or around November 2023, Rapier's son was allegedly falsely accused of hitting two female Caucasian students. (Complaint, ¶13.b.) Rapier alleges that his son vehemently denied the accusations and explained that he was not involved, but that his explanations were disregarded. Rapier characterizes this incident as reflective of a culture of animus toward African Americans. (*Ibid.*)

Upon learning of the accusations, Rapier alleges that he attempted to defend his son to an administration he contends was known to target people of color. Despite Rapier's status as a dedicated employee, Executive Director Catherine Foster (Foster), a Caucasian woman, allegedly disregarded Rapier's explanations and moved his son to a different class. (Complaint, ¶ 13.c.)

Several days later, Rapier alleges that he was notified that the parents of the two female students had filed a restraining order against his son. Rapier contested the matter in court in or around December 2023, and the restraining order was ultimately dismissed. Rapier alleges that despite the dismissal and the determination that his son had not engaged in the alleged conduct, Defendants continued to

target both Rapier and his son. (Complaint, ¶ 13.d.)

As a result of his son's treatment, Rapier alleges that he complained to Foster on multiple occasions about the discrimination his son experienced due to his race. He further alleges that Defendants' actions portrayed him as the antagonist while portraying the White students as victims, thereby leaving his son vulnerable to bullying and further racism. (Complaint, ¶ 13.d.) Rapier alleges that this treatment caused mental deterioration in his son, who became fearful of returning to school. Despite these concerns, Rapier alleges that Foster refused to intervene or address his complaints. (*Ibid.*)

In or around January 2024, Rapier alleges that he submitted a written complaint to the school board regarding the alleged discrimination and false allegations against his son, as well as Foster's refusal to address the issue. According to the complaint, no one from the school board responded, and no investigation was initiated. (Complaint, ¶ 13.f.)

Rapier further alleges that following his complaint, he became the target of retaliation. Specifically, he alleges that Foster and other administrators began to regularly speak to him in a condescending and unprofessional manner and that the retaliation became palpable after he complained. (Complaint, ¶ 13.g.)

In or around April 2024, Rapier alleges that after continuing to experience discrimination, harassment, and retaliation, he complained to Human Resources Coordinator Callie Trilia. According to the complaint, no action was taken in response. Rapier alleges that he then complained to Foster and Ferrera about his treatment, but instead of addressing his concerns, Foster began accusing him of misconduct. (Complaint, ¶ 13.h.)

On April 24, 2024, Rapier alleges that he notified his supervisor that he was leaving work early due to stress and anxiety resulting from the discrimination, harassment, and retaliation he continued to experience. He sought medical attention and was placed on medical leave through June 3, 2024. Rapier alleges that he submitted a doctor's note and applied for short-term disability benefits. (Complaint, ¶ 13.i.)

Despite being on approved medical leave, Rapier alleges that he continued to receive work-related emails from Human Resources. He further alleges that he complained to members of the school board but received no response. (Complaint, ¶ 13.j.)

Rapier alleges that on or around May 23, 2024, his physician extended his medical leave, and that he submitted the updated documentation to his supervisor and members of the school board. On or around June 3, 2024, his physician again extended the leave through August 23, 2024, and Rapier alleges that he notified the appropriate parties of each extension by email. (Complaint, ¶ 13.k.)

On or around June 3, 2024, Rapier alleges that he received a phone call from Human Resources informing him that his contract had been terminated due to a decision to transition to in-house services. (Complaint, ¶ 14.)

As a result of Defendants' conduct, Rapier alleges that he has suffered and will continue to suffer damages, including lost past and future income and employment benefits, damage to his career, lost wages, overtime, unpaid expenses, penalties, and interest, in an amount to be proven at trial. He further alleges non-economic damages, including psychological and emotional distress, humiliation, and mental and physical pain and anguish. (Complaint, ¶¶ 15-16.)

The complaint alleges that the conduct of Defendants Catherine Foster and Gerard Flaherty

constitutes oppression, fraud, and/or malice within the meaning of Civil Code section 3294, entitling him to punitive damages. (Complaint, ¶ 18.)

The complaint alleges the following causes of action based on these facts: (1) Discrimination in Violation of the Cal. Fair Employment & Housing Act, Govt. Code section 12900 et seq.) (FEHA); (2) Hostile Work Environment Harassment in Violation of the FEHA; (3) Retaliation in Violation of the FEHA; (4) Failure to Provide Reasonable Accommodation in Violation of the FEHA; (5) Failure to Engage in the Interactive Process in Violation of the FEHA; (6) Failure to Prevent Discrimination, Harassment, and Retaliation in Violation of the FEHA; (7) Whistleblower Retaliation in Violation of Labor Code section 1102.5; and (8) Intentional Infliction of Emotional Distress.

On September 5, 2025, Defendants CCSPA, Catherine Foster, and Gerard Flaherty filed a demurrer to the complaint pursuant to CCP section 430.10(e), as well as a motion to strike Plaintiff's request for punitive damages. In the demurrer, Defendants challenged the legal sufficiency of the second cause of action for hostile work environment harassment and the eighth cause of action for intentional infliction of emotional distress, and Defendant Flaherty additionally demurred to all causes of action asserted against him.

Prior to the hearing, the parties stipulated to the dismissal of the individual defendants and Plaintiff withdrew his request for punitive damages. As a result, the demurrer by the individual defendants and the motion to strike punitive damages are moot.

Plaintiff thereafter filed an opposition to the demurrer, and Defendant CCSPA filed a reply.

In light of the dismissals and withdrawal of punitive damages, the only issues remaining for determination on demurrer are whether Plaintiff has stated sufficient facts to support the second cause of action for hostile work environment harassment and the eighth cause of action for intentional infliction of emotional distress against Defendant CCSPA.

Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("Doe")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Second Cause of Action for Harassment

Defendant argues the second cause of action for hostile work environment harassment fails to state a cause of action. Defendant does not challenge the sufficiency of the allegations as to severity or pervasiveness but instead argues that Plaintiff fails to allege facts showing the alleged harassment was because of his race or disability.

The elements of a cause of action for harassment are (1) plaintiff belongs to a protected group; (2) plaintiff was subjected to unwelcome harassment; (3) the harassment was based on plaintiff's membership in the protected group; (4) the harassment was sufficiently severe or pervasive to alter

the conditions of employment and create an abusive working environment; and (5) respondeat superior liability. (See, e.g., *Thompson v. City of Monrovia* (2010) 186 Cal.App.4th 860, 876.)

Defendants argue that Plaintiff alleges he is a member of two protected classes, African American and disabled, but that none of the facts alleged constitute harassment based on Defendant argues that Plaintiff alleges he is a member of two protected classes, African American and disabled, but that none of the facts alleged constitute harassment based on either characteristic. Defendant contends that Plaintiff alleges only that after he made complaints regarding an incident involving his son, Ms. Foster and the Board ignored those complaints, that Foster and other administrators thereafter began speaking to Plaintiff in a condescending and unprofessional manner, and that Foster later accused Plaintiff of engaging in misconduct. According to Defendant, these allegations describe conduct occurring after Plaintiff complained about his son's treatment and are not alleged to be directed at, or related to, Plaintiff's race or disability. Defendant therefore contends the harassment claim cannot withstand demurrer.

Plaintiff responds that the allegations must be viewed through the lens of recent legislation recognizing that harassment claims are rarely appropriate for early disposition and that a single incident of harassing conduct may be sufficient to create a triable issue. (Gov. Code, § 12923, subds. (b)–(e); *Dee v. Vintage Petroleum, Inc.* (2003) 106 Cal.App.4th 30, 36.) Plaintiff further relies on *Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, which recognizes that official employment actions may be considered as part of a harassment claim where they convey an offensive or hostile message to the employee. (*Id.* at p. 708.) Plaintiff then cites to *Reno v. Baird* (1998) 18 Cal.4th 640 and *Ortiz v. Dameron* (2019) 37 Cal.App.5th 568 to argue that a hostile work environment cause of action must be evaluated based on the totality of the circumstances and its viability is more appropriately resolved after factual development.

Having considered these arguments, Defendant's demurrer is overruled. As noted, defendant does not challenge the sufficiency of the allegations as to severity or pervasiveness, but instead argues Plaintiff fails to allege facts showing the alleged harassment was because of protected status. The complaint alleges contextual facts supporting an inference of racial animus, including that Plaintiff, an African American employee, complained to a Caucasian school administration about what he perceived to be race-based mistreatment of his African American son, a student at the same school, by the same administrators responsible for decisions affecting Plaintiff's employment. Plaintiff further alleges that both before and after the complaints, he experienced exclusion and hostility in the workplace, and that after the complaints he was subjected to condescending and unprofessional communications and accused of misconduct.

Liberally construed, these allegations support a reasonable inference that the challenged conduct was not race-neutral. Although Defendant argues the alleged conduct reflects retaliation only, the Court cannot resolve this issue on demurrer. Nothing in this ruling precludes Defendant from challenging Plaintiff's evidence supporting the harassment cause of action at a later stage of the proceedings.

Based on the foregoing, the demurrer to the second cause of action is **overruled**.

Eighth Cause of Action for Intentional Infliction of Emotional Distress

The elements of the tort of intentional infliction of emotional distress (IIED) are: (1) extreme and outrageous conduct by the defendant with intent to cause, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation. Conduct is outrageous only when it exceeds all bounds of that usually

tolerated in a civilized community. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.)

Employment actions can involve outrageous conduct. (*Murray v. Oceanside Unified School Dist.* (2000) 79 Cal.App.4th 1338, 1362-1363; *Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 618.) However, “personnel management activity is insufficient to support a claim of intentional infliction of emotional distress, even if improper motivation is alleged.” (*Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 80.) Where personnel management decisions are improperly motivated, the remedy lies in a statutory discrimination claim rather than a tort claim for emotional distress. (*Ibid.*)

Plaintiff argues that because the same facts support his FEHA claims, they also support a “derivative” IIED claim. The Court disagrees. An IIED claim is subject to a higher pleading standard and conduct sufficient to alter working conditions under FEHA may still fall short of the extreme and outrageous conduct required for IIED.

The facts Plaintiff identifies in support of his IIED claim consist of allegations that he was treated unfairly, that his complaints were ignored, that supervisors spoke to him in a demeaning or unprofessional manner, that he was accused of misconduct, that Human Resources and the school board failed to respond, and that he received work-related emails while on medical leave. Even accepted as true, this does not exceed all bounds tolerated in a civilized society and therefore does not constitute extreme and outrageous conduct. Absent additional aggravating circumstances, such allegations may support statutory employment claims, but they are insufficient to state a claim for IIED.

Accordingly, the demurrer to the eighth cause of action is **sustained with leave to amend**.

Disposition

Defendant’s demurrer to the second cause of action for hostile work environment harassment is **overruled** and its demurrer to the eighth cause of action for intentional infliction of emotional distress is **sustained with leave to amend**. Defendant shall prepare the order and serve notice of entry of order. Plaintiff shall have 30 days from service of notice of entry of order in which to file and serve an amended complaint.

13. 9:00 AM CASE NUMBER: C25-01696
CASE NAME: PAUL RAPIER VS. CATHERINE FOSTER
***HEARING ON MOTION IN RE: TO STRIKE PUNITIVE DAMAGE DEMAND**
FILED BY: FOSTER, CATHERINE
TENTATIVE RULING:

The hearing on this Motion is vacated. (See Notice of Withdrawal of Motion filed 12/5/25.)